What Happens Next

Your excessive speeding case, step by step

Since July 2025, driving **50 mph or more over the limit**, or **100 mph or more** in a way that endangers people or property, is a **criminal charge** in Florida. It can't be paid by mail. It goes through county court, and every step below has a purpose.

THE STEPS IN YOUR CASE

1. **Citation or arrest**
   What happens: The officer issues a criminal citation with a court date, or makes an arrest.
   What to expect: Your court date is on the citation or comes by mail. Missing it can lead to a warrant for your arrest.

2. **Arraignment** your first court date
   Goal: The court formally tells you the charge, and a plea is entered.
   What to expect: A short hearing with many cases called together. With a lawyer, a written not-guilty plea can usually be filed so you don't have to attend.

3. **Discovery** no court date
   Goal: Get the State's evidence.
   What to expect: Your lawyer requests the officer's report, how your speed was measured (radar, laser, pacing, or aircraft), the device's testing records, the officer's training, and any video.

4. **Pretrial conference**
   Goal: Review where the case stands and discuss how it can be resolved.
   What to expect: There may be more than one. Depending on the facts, outcomes can include a dismissal, a reduced charge, or setting the case for trial.

5. **Motion hearing** if needed
   Goal: The judge rules on legal challenges, such as whether the speed evidence can be used.
   What to expect: Lawyers argue, and witnesses such as the officer may testify.

6. **Trial**
   Goal: The State must prove the charge beyond a reasonable doubt.
   What to expect: Before a judge or a six-person jury. You decide whether to testify.

7. **Resolution**
   What happens: The case ends in a dismissal, a plea, or a verdict. If there's a conviction, the judge sets the sentence within the limits at right.

MAXIMUM PENALTIES

First offense
Up to 30 days in jail and a $500 fine

Second or later offense
Up to 90 days in jail and a $1,000 fine

Second offense within 5 years
Driver's license revoked for at least 180 days and up to 1 year

Any conviction
A criminal record that can show up on background checks and affect your insurance

Fla. Stat. § 316.1922

WHAT YOU CAN DO NOW

- Keep your citation and any paperwork together.
- Write down what you remember: the road, traffic, weather, and what the officer said about your speed.
- Don't post about the stop or your case online.
- Don't miss a court date.
- Talk to a lawyer before your first court date.

Questions about your case?

Text your case number or a photo of your citation. Jeff Lotter, a former Florida State Trooper, will review it.

407-500-7000
Call or text
Hablamos Español: llame al 407-536-7508

General information about Florida law, not legal advice. Every case is different, and reading this guide doesn't create an attorney-client relationship. Updated October 2026.

Jeff Lotter, Attorney · Lotter Law
200 E. Robinson St., Suite 1140, Orlando, FL 32801
lotterlaw.com